

23BBCV02291 23BBCV02291

County: los-angeles

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Case Number: 23BBCV02291 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION

FOR ORDER COMPELLING MANOUTCHER KHALILI, M.D., TO COMPLY WITH DEPOSITION
SUBPOENA

Hearing Date: 07/10/2026

CASE

NO./NAME: 23BBCV02291 Richard Chaves v. Joshua Henriquez

Moving Party: Defendant,
Joshua Henriquez

Responding Party:

Nonparty Deponent, Manoutcher Khalili, M.D.

Notice: Sufficient

Ruling: DENY

NOTICE

The Court is not requesting oral
argument on this matter. The Court is guided by California Rules of
Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested.
Unless the Court directs argument in the Tentative Ruling, no argument is
requested and any party seeking argument should notify all other parties and

the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a personal injury action arising out of a motor vehicle accident. On November 19, 2025, Defendant Joshua Henriquez ("Defendant") issued a deposition subpoena for personal appearance and production of documents to Manoutcher Khalili, M.D. ("Dr. Khalili"). The deposition was cancelled and rescheduled by Dr. Khalili multiple times, and as of July 6, 2026, Dr. Khalili has not attended the deposition or produced the documents requested. On May 22, 2026, Defendant filed the instant motion to compel Dr. Khalili's compliance with the deposition subpoena. On June 22, 2026, Dr. Khalili filed an opposition. On July 2, 2026, Defendant filed a reply.

LEGAL STANDARD

Code of
Civil Procedure section 205.480 provides in pertinent part:

"(a) If a
deponent fails to answer any question or to produce any document,
electronically stored information, or
tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This
motion shall be made no later than 60 days after the completion of the record
of the deposition,
and shall be accompanied by a meet and confer declaration under Section 2016.040.

(c) Notice
of this motion shall be given to all parties and to the deponent either orally
at the examination, or

by subsequent service in writing. If the notice of the motion is given orally, the deposition officer shall direct the deponent to attend a session of the court at the time specified in the notice.”

(Code Civ. Proc., § 2025.480, subds. (a)-(c).)

DISCUSSION

a. Procedural Issue

As a preliminary matter, the Court notes Dr. Khalili has made an improper and informal request for a continuance rather than filing a properly noticed ex parte application. Accordingly, the Court will not grant a continuance and will hear the motion on its merits.

b. Meet and Confer

Between February 23, 2026, and March 26, 2026, the parties were in email communication regarding Dr. Khalili's deposition. However, this is insufficient to satisfy the meet and confer requirement as the parties did not meet via telephone, videoconference, or in-person. (Code Civ. Proc., § 2016.040.) Nonetheless, in the interest of judicial efficiency, the Court will exercise its discretion and hear the motion on its merits.

c.

Motion to Compel

Defendant's instant motion seeks an order compelling Dr. Khalili to appear, testify, and produce documents at a deposition scheduled for July 30, 2026 at 4:00 p.m. via Zoom.

On November 19, 2025, Defendant issued a deposition subpoena for personal appearance and production of documents to Dr. Khalili. (Babadjanian Decl., ¶ 6, Ex. E-F.) Deposition was set for February 19, 2026. (Babadjanian Decl., ¶¶ 8-12, Ex. I-L.) On February 3, 2026, Dr. Khalili's office sent an email to Defendant's counsel advising them that Dr. Khalili was unable to attend the deposition on February 19, 2026. (Babadjanian Decl., ¶ 13, Ex. M.) Defendant's counsel advised Dr. Khalili that the deposition would proceed as scheduled. (Ibid.) Dr. Khalili failed to

appear at the February 19, 2026 deposition. (Babadjanian Decl., ¶ 14, Exs. N, O.) The deposition was then rescheduled for March 26, 2026. (Babadjanian Decl., ¶ 15, Ex. P.)

Between February 23, 2026, and March

2, 2026, Dr. Khalili's office informed Defendant that his fee for the deposition would need to be paid at least 30 days before the deposition to secure Dr. Khalili's appearance. (Babadjanian Decl., ¶ 17, Ex. R.) Defendant's counsel affirmed he would send Dr. Khalili's office a check via overnight mail on March 23, 2026, despite no legal requirement to do so. (Ibid.) On March 20, 2026, Defendant's counsel sent Dr. Khalili's office a check for the full deposition fee. (Babadjanian Decl., ¶ 19, Ex. T.) On March 23, 2026, Dr. Khalili's office confirmed they received the check but had to reschedule the deposition. (Babadjanian Decl., ¶ 21, Ex. V.) On March 26, 2026, Dr. Khalili's office sent an email to Defendant's counsel stating Defendant would need to agree to the terms of Dr. Khalili's deposition policy before conducting any future deposition of Dr. Khalili. (Babadjanian Decl., ¶ 22, Exs. W-X.) As of May 22, 2026, Dr. Khalili has not appeared or testified at deposition, nor has he produced the requested documents. (Babadjanian Decl., ¶ 23.)

In opposition, Dr. Khalili argues there was a genuine scheduling/payment dispute which constitutes substantial justification. (Opp., p. 5, In. 13-14.) In reply, Defendant argues he has sought to resolve the scheduling issues informally and Dr. Khalili's conditions for the deposition should be rejected.

Here, the Court finds Dr.

Khalili was properly served with a notice of deposition and subpoena for his deposition on February 19, 2026. (Babadjanian Decl., ¶ 11, Ex. K.) The Court reporter completed the record on February 20, 2026. (Babadjanian Decl., ¶ 14, Ex. N.) The instant motion was filed on May 22, 2026. Sixty days from February 20, 2026, was April 21, 2026. Thus, Defendant failed to make this motion within the jurisdictional time limit in Code of Civil Procedure section 2025.480, subd. (b).

Accordingly, the Court DENIES

Defendant's motion to compel compliance with deposition subpoena.

d. Sanctions

Defendant requests monetary sanctions be awarded against Dr. Khalili and his counsel in the amount of \$2,087.20. Given the Court has denied Defendant's motion, the Court further denies Defendant's request for sanctions.

In opposition, Dr. Khalili argues that Defendant and his counsel should pay Dr. Khalili's attorney's fees for opposing the motion. However, Dr. Khalili's counsel does not submit a declaration that states his hourly rate or time spent opposing the instant motion. Therefore, the request for attorney's fees is DENIED.

CONCLUSION
AND ORDER

Defendant Joshua Henriquez's Motion to Compel Compliance with deposition subpoena is DENIED.

MOVING PARTY shall provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court